

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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DOMINICK CARABALLO, MARITZA MULLERO,
and M.N., an infant by her mother and natural guardian,
MARITZA MULLERO,

10 CV 1885 (SJ) (RML)

Plaintiffs,

-against-

AMENDED COMPLAINT

THE CITY OF NEW YORK, DAMON MARTIN,
and THOMAS FUSCO,

Defendants.

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Plaintiffs Dominick Caraballo, Maritza Mullero, and M.N., an infant by her mother and natural guardian, Maritza Mullero, by their attorneys, Reibman & Weiner, as and for their Amended Complaint, hereby allege as follows, upon information and belief:

PARTIES, VENUE and JURISDICTION

1. At all times hereinafter mentioned plaintiff Dominick Caraballo, an adult male, was a resident of Kings County, within the State of New York.

2. At all times hereinafter mentioned plaintiff Maritza Mullero an adult female, was a resident of Kings County, within the State of New York.

3. At all times hereinafter mentioned plaintiff M.N., an infant teenage female, was a resident of Kings County, within the State of New York.

4. At all relevant times hereinafter mentioned, defendant City of New York ("New York City"), was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York and acts by and through its agencies, employees and agents, including, but not limited to, the New York City Police

Department (“NYPD”), and their employees.

5. At all times hereinafter mentioned, defendant Damon Martin was a member of the NYPD with the rank of Sergeant and Shield 4173, and employed, retained, trained and supervised by New York City. Martin is are sued herein in his official and individual capacities.

6. At all times hereinafter mentioned, defendant Thomas Fusco was a member of the NYPD with the rank of Police Officer and Shield 9284, and employed, retained, trained and supervised by New York City. Fusco is are sued herein in his official and individual capacities.

7. This Court has jurisdiction of this action pursuant to 28 U.S.C. §§ 1331, 1343 and 1367, and 42 U.S.C. § 1983.

8. Venue is properly laid, pursuant to 28 U.S.C. Section 1391, et seq. in the Eastern District of New York, where plaintiffs and defendant City of New York reside, and where the majority of actions complained of herein occurred.

9. That plaintiffs timely served Notices of Claim on the municipal defendant and complied with all conditions precedent to commencing an action under state law.

10. At least thirty days have elapsed since service of plaintiffs’ Notices of Claim and adjustment and payment thereof has been neglected or refused.

11. That the within action has been initiated within one year and ninety days of the happening of the events of which plaintiffs complain.

RELEVANT FACTS

12. Plaintiff Maritza Mullero is the mother of siblings Dominick Caraballo and M.N., an adolescent female.

13. On or about August 13, 2009, at or between about 5:30 and 6:00 a.m., plaintiffs were lawfully present and asleep inside 433 Lincoln Avenue, Apartment 3L, in Kings County (the “premises”), where they each reside.

14. Plaintiffs were awoken by the sound of the defendants, including various unnamed members of the NYPD, kicking in the front door of the premises. The defendants then stormed into the premises, seizing the plaintiffs at gunpoint. Mr. Caraballo was thrown violently to the floor and threatened by a member of the NYPD, who placed a gun to Mr. Caraballo’s head.

15. The plaintiffs were each handcuffed and searched by the defendants, who then searched the premises.

16. Plaintiffs Caraballo and Mullero were transported to a local police precinct, where they were held for a number of hours before they were sent to Kings County Central Booking.

17. The Kings County District Attorney’s Office declined to charge with Caraballo or Mullero with any criminal wrongdoing.

18. After having been imprisoned for about 60 hours, Dominick Caraballo was released from custody. He was never charged with respect to this arrest.

19. After having been imprisoned for about 20 hours, Martiza Mullero was

released from custody. She was never charged with respect to this arrest.

20. Infant plaintiff M.N. was held at the premises for a period of time, during which one or more of the defendants threatened to send her to a foster home and stated that she would be taken from her family. Eventually, M.N. was permitted to leave the premises in the care of a neighbor.

21. The defendants were not invited into the premises nor was their entry consented to by any of the plaintiffs, or any other individual authorized to so consent.

22. There were no exigent circumstances present that would permit defendants to enter the premises absent a warrant or invitation.

23. The defendants did not display a warrant to justify their entry into the premises and refused to produce one after the plaintiffs asked.

24. If indeed a warrant had issued, it would have been procured on false or otherwise misleading information.

25. At no time did defendants have probable cause to seize, detain or arrest any of the plaintiffs, nor was it reasonable for the defendants to believe that such cause existed.

26. At no time did any of defendants, or any other member of the NYPD, take any steps to intervene in, prevent, or otherwise limit the heretofore conduct engaged in by their fellow officers.

27. That at all times relevant herein, the defendants were acting within the scope of their employment, and their acts were done in furtherance of the City of New

York's interests and without legal justification or excuse.

FIRST CAUSE OF ACTION

28. Plaintiffs repeat the allegations contained in paragraphs "1" through "27" above as though stated fully herein.

29. Defendants willfully and intentionally seized, searched, detained and arrested plaintiffs without probable cause, and without a reasonable basis to believe such cause existed.

30. By so doing, the individual defendants, individually and collectively, subjected the plaintiffs to false arrest and imprisonment, unlawful searches of person and property, denial of due process, and malicious prosecution, and thereby violated, conspired to violate, and aided and abetted in the violation of plaintiffs' rights under the Fourth and Fourteenth Amendments of the United States Constitution.

31. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused plaintiffs to suffer emotional and physical injuries, mental anguish, incarceration and the deprivation of liberty, and the loss of their constitutional rights.

SECOND CAUSE OF ACTION

32. Plaintiffs repeat the allegations contained in paragraphs "1" through "31" above as though stated fully herein.

33. Defendant was responsible for ensuring that reasonable and appropriate levels of supervision were in place within the NYPD.

34. Defendant had actual or constructive knowledge that there was

inadequate supervision within the NYPD with respect to its members' abuse of their authority, use of excessive force, abuse of arrest powers, and other blatant violations of the United States Constitution and the rules and regulations of the NYPD. Despite ample notice of inadequate supervision, defendant took no steps to ensure that reasonable and appropriate levels of supervision were put place to reasonably ensure that NYPD members, including the defendants, engaged in police conduct in a lawful and proper manner, including their use of their authority as law enforcement officers with respect to the general public, including, and specifically, the plaintiffs herein.

35. The defendant City of New York deliberately and intentionally chose not to take action to correct the chronic, systemic and institutional misuse and abuse of police authority by NYPD members, including the defendants, and thereby deliberately and intentionally adopted, condoned, and otherwise created through deliberate inaction and negligent supervision, an NYPD policy, practice and custom of utilizing illegal and impermissible searches, arrests and detentions, and the manufacturing of evidence, in the ordinary course of NYPD business in flagrant disregard of the state and federal constitutions, as well as the Patrol Guide, up to and beyond the plaintiffs' arrest on August 13, 2009.

36. Defendant was deliberately indifferent to the risk that the inadequate level of supervision would lead to the violation of individuals' constitutional rights in general, and caused the violation of plaintiffs' rights in particular.

37. By reason thereof, defendant has violated 42 U.S.C. §1983 and caused

plaintiffs to suffer emotional and physical injuries, mental anguish, incarceration and the deprivation of liberty, and the loss of their constitutional rights.

THIRD CAUSE OF ACTION

38. Plaintiffs repeat the allegations contained in paragraphs "1" through "37" above as though stated fully herein.

39. Plaintiffs were subjected to false arrest and false imprisonment by the defendants.

40. At no time did defendants have legal cause, justification, authority, or any colorable legal basis for seizing any of the plaintiffs, placing plaintiffs under arrest, imprisoning plaintiffs, or seeking to commence criminal process against plaintiffs Caraballo and Mullero, nor was there any reasonable basis to believe said conduct set forth herein was lawful, reasonable or otherwise appropriate.

41. At no time did defendants have legal cause, justification, authority, or any colorable legal basis for threatening the infant plaintiff and her family with the removal of the infant plaintiff from the family home, nor was there any reasonable basis to believe said conduct set forth herein was lawful, reasonable or otherwise appropriate.

42. At no time did defendants have legal cause, justification, authority, or any colorable legal basis for the use of force against Dominick Caraballo or putting a presumably loaded gun to his head, nor was there any reasonable basis to believe said conduct set forth herein was lawful, reasonable or otherwise appropriate.

43. The defendants are therefore liable to plaintiffs for false arrest and false

imprisonment, battery and negligent and intentional infliction of emotional distress.

44. By reason thereof, defendants have caused plaintiffs to suffer emotional and physical injuries, mental anguish, and unlawful incarceration.

FOURTH CAUSE OF ACTION

45. Plaintiffs repeat the allegations contained in paragraphs "1" through "44" above as though stated fully herein.

46. The defendants, individually, jointly and severally, and through their agents, servants, employees, and/or associates were responsible for the proper, adequate and necessary permissible police and law enforcement conduct with respect to any interaction with plaintiffs.

47. The police and law enforcement conduct engaged in and rendered to plaintiffs by the individual defendants, individually, jointly and through their agents, servants, employees, and/or associates was careless and negligent and not in accordance with good and accepted police and law enforcement practices and in violation of NYPD policies and procedures and was not otherwise reasonable conduct under the circumstances then and there existing.

48. As a result of the carelessness and negligence and violation of NYPD procedures and policies by the respective defendants, their agents, servants, employees and/or associates, plaintiffs were caused to sustain severe and irreparable personal injury and damage.

49. By reason thereof, the defendants have caused plaintiffs to suffer

emotional and physical injury, mental anguish, and to be unlawfully incarcerated.

FIFTH CAUSE OF ACTION

50. Plaintiffs repeat the allegations contained in paragraphs "1" through "46" above as though stated fully herein.

51. Defendants willfully and intentionally seized, arrested, and imprisoned plaintiffs without cause, and without a reasonable basis to believe such cause existed, and in so doing, violated, conspired to violate, and aided and abetted in the violation of plaintiffs' rights under Article 1, §§11, 12 of the Constitution of the State of New York.

52. Defendants' violation of plaintiffs' state constitutional rights was knowingly undertaken with the intent to deny the plaintiff their right to full and equal benefit of the laws of the State of New York.

53. By reason thereof, defendants have caused plaintiff to suffer emotional and physical injuries, mental anguish, and the loss of his constitutional rights.

DEMAND FOR A JURY TRIAL

Pursuant to Fed. R. Civ. P. 38, Plaintiff hereby demands a jury trial of all issues capable of being determined by a jury.

WHEREFORE, the plaintiffs demand judgment against defendants jointly and severally as follows:

- i. on the first cause of action actual and punitive damages in an amount to be determined at trial;
- ii. on the second cause of action actual and punitive damages in an amount to be determined at trial;
- iii. on the third cause of action actual damages in an amount to be determined at trial;
- iv. on the fourth cause of action actual and punitive damages in an amount to be determined at trial;
- v. on the fifth cause of action actual and punitive damages in an amount to be determined at trial;
- vi. statutory attorney's fees pursuant to, *inter alia*, 42 U.S.C. §1988 and New York common law, disbursements, and costs of this action; and
- vii. such other relief as the Court deems just and proper.

Dated: Brooklyn, New York
April 11, 2011

REIBMAN & WEINER

s/

By: _____
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